

Constitutional Law

Year II, Semester I

Chapter one: Introduction to Constitutional Law

Dessaegn Tigabu
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Chapter one: Introduction to Constitutional Law

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1.1 Definition of constitution

- What does a constitution sound to you?
- In an ordinary parlance, people use the term 'constitution' to mean the governing document of their association.
- In fact, they consider it as the rule of the game for the 'play' they are going to perform.
- To *constitute* means to make up, order, or form.
- Thus a nation's constitution should pattern a political system.
- Some texts implicitly proclaim themselves to be supreme law and many do so explicitly.

1.1 Definition of constitution

- Still, a document's bearing the title, *a constitution* and declaring its own control over all other political acts may not mean very much.
- We need to distinguish between the authorities a text asserts.
- Constitutional texts may reflect spectra of qualities.
- At one extreme there have been a number of sham constitutions.
- At the other end there are those whose provisions are fully operative; but no constitutional text operates with complete authority.

1.1 Definition of constitution

1. 'A constitution is a body of rules that express the **wishes and whims** of *the people* who make it with regard to the *type and powers of the government* through which they decide to be represented.'

1.1 Definition of constitution

- According to the above definition, a constitution is viewed as the expression of the people's wish.
- Therefore, it must be made by the people themselves who are the only true sources of their own wishes.
- If, however, a constitution is to be made by experts who think that they know what the people in that country wish, then it violates the basic definitional element of a constitution irrespective of the ability of the speculators in properly addressing those wishes.
- Such rules which reflect the wishes of the people mainly address, according to this definition, the type of government that they want to put in place as well as the powers of same.
- Thus, the main object of a constitution is instituting the government together with defining its power.

1.1 Definition of constitution

Two important issues:

First

Constitutions are documents by which fundamental choices about a certain polity are made

- These choices are reflected through the institutions that are created by the constitution
- The three branches of government are created by the constitution

Second

Not only do they **establish** and **empower** institutions but also set some limits on such institutions

Power left unchecked is subject to tyranny and abuse

Check and balance is necessary

1.1 Definition of constitution

- The makers of the constitution are the people in the particular country concerned, the processes in having the final work may, nonetheless, follow very complex procedures.
- In such processes, the people may not, sometimes, play an active role by direct involvement.
- Moreover, beyond and above the role that it plays as a document that institutes a government together with defining its powers, there are other important issues that it addresses.
- For instance, the basic rights of the people, which are usually made part and parcel of the constitution, are meant to serve as 'contractual terms' between the government and its subjects. These and other aspects of a Constitution seem to

1.1 Definition of constitution

2. 'A constitution is a *fundamental law* by which the powers of the government are being defined and limited.'

Unlike the former definition, the later does not state as to who may make a constitution.

However, it has brought in to our attention the fundamentality of a constitution which in fact is correct. By 'fundamental' we mean that a constitution is the basis for all other laws and that is why we call it 'the mother of all laws'.

Furthermore, the definition explains the contents of a constitution to be defining and limiting the powers of the government.

Thus, what it has in it is only the powers of the government which need to be defined and limited.

1.1 Definition of constitution

- When we look to this definition very critically, we can say that it is **too limitative a definition** restricting the contents of a constitution only to few parts that this **basic politico-legal document is supposed to have.**
- Not to mention what we have said above concerning the rights and freedoms of the people, a constitution also lays down such things as state structure and forms of government, basic constitutional principles, amendment procedures, etc.
- Therefore, such a narrow definition may have the **risk of uncovering the relevant aspects of a constitution.**

1.1 Definition of constitution

3. 'A constitution is the whole system of government that establishes and governs the government.'

- When simply put, a constitution is a system of government. And the whole purpose of it is to establish and govern the government.
- Still one may mention the above comments relating to the second definition where we said that it was too narrow a definition failing to confer proper meaning for what a constitution is.

1.1 Definition of constitution

- When you look at it, a body of rules that does not establish and come up with rules to regulate the government would not be named as a constitution.
- We may agree with this fact since a constitution is actually meant to establish and govern the powers of the government within the confines of some defined principles and terms.
- Nonetheless, there are lots of other factors that need to be addressed by this fundamental document.

1.1 Definition of constitution

- All the above definitions put together will only give us the essence of a constitution and the fact that it is not easy to come up with a single definition for it.
- Basically, it is meant to address the wishes of the people in a country as to what form of government to have, the powers of such government, the division of its powers among the various state organs, the guarantee of the people's rights and freedoms which will serve as contractual terms, for a government that keeps them to remain in power, or for the one which readily defaults to be removed by the subjects of these rights.
- In addition to that one has to bear in mind the fundamentality aspect of the constitution.

1.1 Definition of constitution

4. “The fundamental and organic law of a nation or state, establishing the conception, character, and organization of its government, as well as prescribing the extent of its sovereign power and the manner of its exercise.”

— Black’s Law Dictionary

1.1 Definition of constitution

Generally a constitution is a set of fundamental legal-political rules that:

- (1) are **binding on everyone** in the state, including ordinary lawmaking institutions;
- (2) **concern the structure and operation of the institutions of government, political principles and the rights of citizens;**
- (3) are based on **widespread public legitimacy;**
- (4) are **harder to change than ordinary laws** (e.g. a **two-thirds majority vote** or or a **referendum is needed**);
- (5) as a minimum, meet the internationally recognized criteria for a democratic system in terms of representation and human rights.

Definition of constitutional Law

- **Constitutional law**, which is a continuation of what we have discussed above, is that branch of **public law** that governs the interplay of the government in relation both to the public as well as within its subdivisions.
- It is the **fundamental national law** of states by which they institute state organs, lay down the basic enforceable norms and other general principles that are meant to guide the ordinary laws to be issued.
- Most importantly, **the rights and freedoms of the people** are **dogmatically phrased in the constitutional law indicating** their scope and the possible restrictions that may be imposed through special laws.

Definition of constitutional Law

- **Thus, constitutional law is a law** that sets the whole system of government in motion within clearly defined play yards and rules of the game as stipulated in the same law.
- When a constitution is used rather narrowly to refer to a single authoritative document, the aim of which is to codify major constitutional principles, it constitutes the highest law of the land, known as constitutional law.
- Since it is not possible to cover all constitutional provisions in a single document, a constitution is not, *ipso facto*, coextensive with constitutional law.
- As is true for any ordinary law, it needs interpretation, modifications, and application.
- However, the interpretation, amendment procedures and its applications have unique characteristics than what we see in all other branches of the law. We will be treating all such distinguishing features as we go along the course.

Constitutions 1

- Executive....
 - Body or bodies that put the law into effect
- Legislature....
 - Body or bodies that make laws
- Judiciary
 - Body or bodies that settle disputes arising from application or interpretation of the laws

Constitutions 2

- **Federal**
 - Various powers of government are divided between different geographical units and a central government
- **Unitary**
 - Ultimate power is held by a central government

Constitutions 3

- Unicameral
 - A single law making authority
- Bicameral
 - Two legislative assemblies which act as a check on the other

1.2 Basic features and functions of constitutions

1.2.1 Basic features of a Constitution

The basic features of constitutional law make it distinct from any of the other ordinary legislations.

- It helps to understand further the nature of this fundamental legislation.

A. Generality

- A constitution has this defining feature of generality than any other piece of legislation in a country.
- Constitutional norms are to provide for **general principles** that are meant to **cover as wider situations and happenings as possible**.
- If it **were to go to the detailed rule-makings** with extensive elaborations, then there would have been no or little need for having a legislature in that country as every norm would have been established by the text of the constitution like the Holy Bible or the Holy Koran.

1.2.1 Basic features of a Constitution

- Moreover, there would have been no room for manipulating its texts to accommodate newly emerging situations that need to be addressed without a need to change the constitution.
- In effect, the generality of the norms to be set in a constitution is but one way of ensuring its permanence or stability for an indefinite future.
- For instance, let's read the following Article from our Constitution:

Article 15: Right to Life

Every person has the right to life. No person may be deprived of his life except as a punishment for a serious criminal offence determined by law.

1.2.1 Basic features of a Constitution

- From this provision we can understand many things even if it is stated in a very precise and brief manner.
- It is stated that right to life is a right that is given for every person without any distinction.
- Thus, it applies for citizens and non-citizens alike.
- The second bit of the provision tells us that this right is not absolute in the sense that in exceptional circumstances determined by law as serious criminal offences, one's right to life may legitimately be deprived when and if the court decides for so doing.
- A wide range of legislative discretion has been opened by this provision to our law makers in the sense that they will have to decide what type of acts may constitute serious criminal offences deserving capital punishment/death penalty.

1.2.1 Basic features of a Constitution

B. Permanence and Transitivity

- **Stability/permanence** is also achieved due, mainly because of the fact that the amendment of a constitution is not as simple as it is the case for ordinary laws.
- It is made to be out of the reaches of the legislative organ, basically because it is the will of the people who alone should decide to change it when the need arises.
- If we see the amendment procedure provided in our constitution, it is so stringent that, among other things, the two federal houses, the regional councils and the public-through discussion-must involve one way or another in any amendment proposal relating to the provisions of the constitution.
- This is a topic that we will be coming back to in our final discussions of this course. For the moment you can just have a quick look at Articles 104 & 105 of the FDRE constitution. Thus, this also ensures the permanence of the constitution.

1.2.1 Basic features of a Constitution

- **The stable constitutional** system the legislature will ensure continuity by issuing laws that govern the ever changing social dynamisms.
- This implies that the ordinary laws need not, relatively speaking, be stable so long as the need arises for changing them to accommodate new happenings.
- When we see Ethiopia's constitutional history, there has been a contrary trend of events than suit.
- This is because, we have embraced our Civil Code for over 60 years while we have had four constitutional changes within this same span of time.
- Basically, this emanates from the background in which the country opted to adopt a constitution in those times.

1.2.1 Basic features of a Constitution

- When we say **transitivity** of a constitution, it is to mean that the constitution has the nature of serving as the source for all the other ordinary laws to be issued in that particular country.
- It has therefore, a transitivity effect in the sense that it translates itself in all the other detailed laws which exist but as implementing and promoting tools of the general legal, economic, political, social, and cultural values and principles as reflected in the texts of the constitution.
- It serves, in other words, as an umbrella within the country's legislative and policy formulation, implementation and review processes.
- That is what we call transitivity feature of the constitution.

1.2.1 Basic features of a Constitution

- To summarize what we have seen so far, we can say that constitution must be able to stand changes of governments and political ideals so as to qualify as **stable/permanent**.
- For how long a constitution should remain operative to qualify as permanent/stable is just a question of relativity.
- It is very difficult to say any of our constitutions to be stable, including the FDRE constitution.
- This is because of the fact that the latter has not yet been tested whether it could stand change of even a single regime or political ideal, current government?
- And **transitivity** of a constitution tells us that a constitution is meant to reincarnate itself in ordinary legislations.

1.2.1 Basic features of a Constitution

C. Supremacy

- Supremacy of the constitution is even one of the fundamental principles of a constitution
- A constitution has this innate character or feature of being supreme to any other law within the country.
- This reinforces its feature of generality and transitivity.
- The question is why is a constitution supreme?

First, it is supreme from the historic point of view.

- This is to mean that the constitution has been created earlier than a legislature that is making a law within the country and with which the constitution is being compared.
- Thus, there is this ‘historic’ ground to consider the constitution supreme since it has come first than the legislative organ, even much more so for its laws.

1.2.1 Basic features of a Constitution

- **Secondly, there is a moral ground for the supremacy of the constitution in the sense that the creature must always be considered lower than the creator itself.**
- The constitution is resumed to create all the organs of government which are endowed with legislative, executive and judicial responsibilities.
- Thus, any of these organs' enactments must be subdued as lower than the constitution itself which is considered as the mother of all laws. Thus, this is from the moral point of view.
- Legally speaking the constitution contains **general principles** that are meant to be translated by implementing legislations, decisions and policies in the country.

1.2.1 Basic features of a Constitution

- Thus, they are the sources of all the other norms that are meant to be applicable in a compatible manner.
- Thus, since all the other laws owe their authority to the constitution, they must remain below the general principles laid down in the constitution.
- And the constitution itself will always have a supremacy clause giving it a legal ground and not just moral or historical reasons. We will be looking into Article 9 of the FDRE constitution (the Supremacy clause) in our next chapter discussion.
- Thus, for these reasons, the constitution must be supreme and all constitutions have this feature. With this we shall end this part of our discussion and of course the chapter too with the following few summery questions that you need to answer.

1.2.2 The Functions of a Constitution

1. Constitutions can declare and define the boundaries of the political community

- These boundaries can be territorial (the geographical borders of a state, as well as its claims to any other territory or extra-territorial rights) and personal (the definition of citizenship).
- Thus, a country's constitution often distinguishes between those who are inside and those who are outside the polity.

2. Constitutions can declare and define the nature and authority of the political community

- They often declare the state's fundamental principles and assumptions, as well as where its sovereignty lies.

3. Constitutions can express the identity and values of a national community

As nation building instruments, Constitutions may define the national **flag**, **anthem** and **other symbols**, and may make **proclamations** about the values, history and identity of the nation

1.2.2 The Functions of a Constitution

4. Constitutions can declare and define the rights and duties of citizens.

- Most constitutions include a declaration of fundamental rights applicable to citizens. At a minimum, these will include the basic civil liberties that are necessary for an open and democratic society

(e.g. the freedoms of thought, speech, association and assembly; due process of law and freedom from arbitrary arrest or unlawful punishment).

Many constitutions go beyond this minimum to include social, economic and cultural rights or the specific collective rights of minority communities. And some rights may apply to both citizens and noncitizens, such as the right to be free from torture or physical abuse.

1.2.2 The Functions of a Constitution

5. Constitutions can establish and regulate the political institutions of the community—defining the various institutions of government;

- Prescribing their composition, powers and functions; and regulating the relations between them.
- It is almost universal for constitutions to establish legislative, executive and judicial branches of government.
- In addition, there may be a symbolic head of state, institutions to ensure the integrity of the political process (such as an electoral commission), and institutions to ensure the accountability and transparency of those in power (such as auditors, a court of accounts, a human rights commission or an ombudsman).
- The institutional provisions typically provide mechanisms for the democratic allocation and peaceful transfer of power (e.g. elections) and mechanisms for the restraint and removal of those who abuse power or who have lost the confidence of the people (e.g. impeachment procedures, motions of censure).

1.2.2 The Functions of a Constitution

6. Constitutions can divide or share power between different layers of government or sub-state communities.

- Many constitutions establish federal, quasi-federal or decentralized processes for the sharing of power between provinces, regions or other sub-state communities.
- These may be geographically defined (as in most federations, such as Argentina, Canada or India), or they may be defined by cultural or linguistic communities (e.g. the 1994 Constitution of Belgium, which establishes autonomous linguistic communities in addition to geographical regions).

1.3 Classifications of Constitutions

Basis for Classification

- **By looking at the Nature of the Constitution itself: Traditional approach**

Written /unwritten, codified/uncodified

- **By looking amendment procedure**

Rigid/Flexible

- **By looking at the Nature of the State itself: Federal/Unitary classification**
- **By looking at the nature of the Government itself: Presidential/Parliamentary Classification and Republican/Monarchical Classification**
- **By looking at the Legislature: Unicameral/Bicameral/Tricameral/Tetracameral**

1.3 Classifications of Constitutions

A. Written/Unwritten constitution

- The most widely known classification is the one that categorises constitutions in to two based on the form they assume.
- When we say a constitution is written, it is to mean that the constitutional principles have been documented and have taken such a form that enables them easily accessible
- While the unwritten ones are those which do not have such a form of documentation and which are presumed to be found in that society's custom and tradition.
- While the written ones are considered to involve the human ingenuity as their creator, the unwritten ones are just organic evolutions of societal dynamism and tradition.

1.3 Classifications of constitutions

- Over the world, there are only few countries that have unwritten constitution
- (i.e. Israel, New Zealand and the UK/ Bhutan, Saudi Arabia Oman
- The overwhelming majority of the world states have written constitutions.
- Both the written as well as the unwritten forms of a constitution have their own benefits and disadvantages

1.3 Classifications of constitutions

A codified constitution: strengths and weaknesses

- *The strengths of a codified or written constitution include the following;*
 - ❖ *Major principles and key constitutional provisions are entrenched (securely established).*
 - ❖ *The power of the legislature is constrained, cutting its sovereignty down to size.*
 - ❖ *Non-political judges are able to police the constitution to ensure that its provisions are upheld by other public bodies.*
 - ❖ *Individual liberty is more securely protected, and authoritarianism is kept at bay (is restrained).*
 - ❖ *The codified document has an educational value, in that it highlights the central values and overall goals of the political system.*

1.3 Classifications of constitutions

- ***The drawbacks or weaknesses of codification include the following;***
 - ❖ *A codified constitution is more rigid, and may therefore be less responsive and adaptable than an uncoded one.*
 - ❖ *Government power may be more effectively constrained by regular elections than by a constitutional document.*
 - ❖ *With a codified constitution, constitutional supremacy resides with non-elected judges rather than with publicly accountable politicians.*
 - ❖ *Constitutional provisions enshrined in custom and convention may be more widely respected because they have been endorsed by history and not 'invented'.*
 - ❖ *Constitutional documents are inevitably biased, because they endorse one set of values or principles in preference to others, meaning that they may precipitate more conflicts than they resolve.*

1.3 Classifications of constitutions

B. Rigid/Flexible Constitution

- Such classification is based on the **amenability** of the constitution for change.
- And it is very important to understand the fact that **both are very relative terms** in the sense that a constitution is **rigid or flexible** by **comparison to peer documents of its nature,**
- otherwise **there is no any criteria or objective content** either for a rigid or flexible constitution, as such.

1.3 Classifications of constitutions

C. Federal/Unitary Constitution

- This is a classification of constitutional texts based on their content.
- A constitution may establish a unitary state structure whereby it establishes a central government with single legislative, executive and judicial organ which operate at the centre and regulate all the parts of the country with arms-length relations.
- Where the state structure established by the constitution is that of Federalism, then the constitution is named as federal constitution and its contents accordingly vary from that of a constitution that establishes a unitary State Structure.
- The content of a federal constitution is basically engaged in power division between the central and the regional/state/cantonal governments and that is a very complicated assignment for the architects of such a constitution.

1.3 Classifications of constitutions

- It requires the understanding of the country's situations to a micro-level details and it has to address most of the sources of differences and those that could be put as common aspirations.
- By the differences, the regional governments' power shall be identified and by the common aspirations, the central government's powers and responsibilities will be defined.
- When it comes to a constitution that is supposed to establish a single central government, the whole idea will be delimiting the government's power through the people's rights and freedoms, vertical division of power among the three organs of government and addressing the principles of checks and balances.

1.3 Classifications of constitutions

D. Republican/monarchical constitutions -By looking at the nature of the Government itself

- A constitution may have content of establishing a republican government or to the contrary a monarchical one
- ‘Republic’ is derived from two Latin words-‘res’ and ‘publica’- which means **‘thing or affair of the public’**
- **It is a form of government in which state is ruled by representatives elected by its populace.**
- **The term was originally applied to a form of government in which the leader is periodically appointed under a constitution; it was contrasted with governments in which leadership is hereditary.**
- A republic may also be distinguished from direct democracy, though modern representative democracies are by and large republics.
- A monarch, as the name implies, was **the sole ruler responsible to himself alone.**
- But it is difficult today to find examples of such absolute monarchies.(ii)

1.3 Classifications of constitutions

E. Presidential/Parliamentary Constitutions- By looking at the nature of the Government itself

- Content wise, constitutions could be classified into presidential and parliamentarian ones based on the system of government they establish
- A constitution may establish a presidential/congressional system of government which is a system of government where the executive branch exists and presides (hence the term presidential) separate from the legislature and is both unaccountable to, and cannot be dismissed in normal circumstances by the latter.
- It owes its origins to the mediaeval monarchies of France and the nations of Great Britain, in which executive authority was vested in the Crown, not in parliament.

1.3 Classifications of constitutions

- The concept of separate spheres of influence of the executive and legislature was copied in the Constitution of the United States, with the creation of the office of President.
- While Great Britain have moved to a position where the executive is answerable to parliament, the United States maintains the concept of separation.
- This has given rise to criticism of the United States presidency, with accusations that the United States has an "Imperial Presidency". Others dispute the extent to which a real separation exists, referring to the concept of "separate institutions sharing power".

1.3 Classifications of constitutions

F. Unicameral/Bicameral/Tricameral/Tetracameral; By looking at the Legislature

- (i) **Unicameralism**

- **Unicameralism** is the practice of having **only one legislative** or **parliamentary** chamber.
- Many countries with unicameral legislatures are often **small** and **homogeneous unitary** states and consider **an upper house** or **second chamber unnecessary**.

- (ii) **Bicameralism**

The bicameral legislature of the United States is housed in a capitol building with two wings. The north wing houses **the Senate** while the south wing houses **the House of Representatives**.

- **Federalism and Non- Federalism?**

- (iii) **Tricameralism**

- **Tricameralism** is the practice of having three legislative or parliamentary chambers. It is contrasted to unicameralism and bicameralism, both of which are far more common.
- The term was used **in South Africa** to describe the Parliament established under the apartheid regime's new Constitution in 1983. Other instances of tricameral legislatures in history include Simón Bolívar's model state. The word could also describe the French States-General, which had three 'estates'.

1.4 Fundamental Principles of Constitutional Law

- These principles are more or less universal in the contemporary modern constitutional law settings

1.4.1 The principle of Supremacy of the constitution

- **Why Constitutional supremacy as a fundamental feature?**
- It is an assurance that the decision of the people which are expressed and embodied in the constitution are immutable by any force, law, body.
- No action of bodies of representative democracy may override the decision of the whole people
- The constitution is superior to the laws and other decisions of government organs

The principle of Supremacy of the constitution

- This means that any law that violates the Constitution, or any conduct that conflicts with it, shall be challenged and struck down by an appropriate organ, in most of the cases by courts, that is given the power to safeguard the supremacy of the constitution.
- This is a counter-part of the parliamentary sovereignty principle, which is a concept in constitutional law that applies to some parliamentary democracies such as the United Kingdom and New Zealand

The principle of Supremacy of the constitution

- Ethiopian constitution
- Article 9: Supremacy of the Constitution
 1. The constitution is the supreme law of the land. Any law, customary practice or a decision of an organ of state or public official which contravenes this constitution shall be of no effect.
 2. All citizens, organs of state, political organizations, other associations as well as their officials have the duty to ensure observance of the constitution and obey it.
 3. It is prohibited to assume state power in any manner other than that provided under the constitution.
 4. All international agreements ratified by Ethiopia are an integral part of the law of the land.

The principle of Supremacy of the constitution

- When we see the Ethiopian Constitution, the only requirement for its domestic application is ratification which is not the same as saying it must be enacted by parliament.
- Therefore, our approach coincides with most civil law countries such as Federal Republic of Germany's 1949 constitution Article 25 which provides
- 'The general rules of international law shall be an integral part of federal law. They shall take precedence over the laws and directly create rights and duties for the inhabitants of the federal territory'.

The principle of Supremacy of the constitution

- Moreover, with regard to supremacy, it rather has adopted a different approach under its Article 31 by saying 'Federal law shall take precedence over 'Land' law'.
- By Land it is referring to the federated units of the republic which we call regions.
- Even if the reference to 'the general rules of international law' is different from treaty-based international law, it is still clear that there is a monist approach to the domestic application of international law.

1.4.2 Popular Sovereignty

- Sovereignty means the right and power to **command, decide, rule, or judge: authority, command, control, domination, might, power, prerogative**, etc may be used as nearly synonyms to sovereignty.
- when considered from the perspective of inter-state relations it may mean the condition of **being politically free: autonomy, freedom, independence, liberty, self-government**, etc may connote the sovereignty of state in its international personality.

1.4.2 Popular Sovereignty

- Jean Bodin (1530-1596) is considered to be the modern initiator of the concept of sovereignty, with his 1576 treatise *Six Books on the Republic* which described the sovereign as a *ruler beyond human law and subject only to the divine or natural law*.
- He thus predefined the scope of the divine right of kings, stating 'Sovereignty is a Republic's absolute and perpetual power'.

1.4.2 Popular Sovereignty

- Sovereignty is absolute, then indivisible, but not without any limits: it exercises itself only in the public sphere, not in private sphere.
- It is perpetual, because it does not expire with its holder (as kings do). In other words, sovereignty is no one's property: by essence, it is inalienable.
- have you understood the basic features of sovereignty?
- These characteristics are very pertinent as they help you understand popular sovereignty which originated in the social contract theories of Rousseau (1712-1778).

1.4.2 Popular Sovereignty

- Popular sovereignty is the doctrine that the state is created by and subject to the will of the people, who are the source of all political power.
- The central tenet of this form of sovereignty is that legitimacy of rule or of law is based on the consent of the governed.
- Popular sovereignty is thus a basic doctrine of most democracies.

1.4.2 Popular Sovereignty

- **Hobbes, Locke and Rousseau** were the most influential thinkers of this school,
- all postulating that individuals choose to enter into a social contract with one another, thus voluntarily giving up some rights in return for protection from the dangers and hazards of a state of nature.

1.4.2 Popular Sovereignty

- Most republics and many constitutional monarchies are theoretically based on popular sovereignty.
- However, a legalistic notion of popular sovereignty does not necessarily imply an effective, functioning democracy: a party or even an individual dictator may claim to represent the will of the people, and rule in its name.

1.4.2 Popular Sovereignty

- **Popular sovereignty** is a distinct concept from territorial sovereignty. As many instances of territorial cession show, territorial sovereignty is held by a government, not by the people, to be claimed against other states.
- This is a principle in international law, which pertains to a government possessing full control over its own affairs within a territorial or geographical area or limit.
- Thus, it is very important, as we have noted in our introductory chapter, to distinguish the two forms of sovereignty.

1.4.2 Popular Sovereignty

- The exercise of popular sovereignty may be direct, as in a popular assembly, or, more commonly, indirectly through the election of representatives to government.
- The latter is known as a representative democracy, a system of government currently used in most countries of the world.
- Popular sovereignty also exists in other forms, such as in constitutional monarchies, usually identical in political systems as in the United Kingdom and commonwealth realms.

1.4.2 Popular Sovereignty

- Systems of representative democracy can also be mixed with other methods of government, for instance the use of referendums in many countries.
- In Switzerland, for instance, referendums are the widely used means of legislative approval as well as initiation and decisions on the amendment of the constitution.
- This is being applied side-by-side with the representative democracy where the legislative organs are being elected to sit in parliament and make laws without the need to call for referendum.

1.4.2 Popular Sovereignty

- When we see our FDRE constitution this matter has been addressed under Article 8 of the constitution in the following way;
- ***Article 8: Sovereignty of the People***
 1. All sovereign power resides in the Nations, Nationalities, and Peoples of Ethiopia.
 2. This constitution is an expression of their sovereignty.
 3. Their sovereignty shall be expressed through their representatives elected in accordance with this Constitution and through their direct democratic participation.

1.4.2 Popular Sovereignty

- The first sub-article has clearly spelt out the concept of popular sovereignty by declaring that the NNPs of Ethiopia are the sovereign power holders.
- The reference to Nations, Nationalities, and Peoples of Ethiopia is widely seen in this constitution signifying the primacy that the constitution has given to the rights of self-determination.

1.4.2 Popular Sovereignty

- The term has been defined under Article 39(5) as:

“A Nation, Nationality or People” for the purpose of this Constitution, is a group of people who have or share large measure of a common culture or similar customs, mutual intelligibility of language, belief in a common or related identities, a common psychological make-up, and who inhabit an identifiable, predominantly contiguous territory.”

- Thus, the gross reference to the ‘People of Ethiopia’ has not been preferred anymore while describing the sovereign power-holders in the constitution.
- It is believed that such generalized reference has had the effect of undermining the distinct cultures and values at the same time making few of the cultures to flourish at the expense of the others.

1.4.2 Popular Sovereignty

- The expressions of sovereignty, as we have discussed them earlier in relation to basic concepts of constitutional law, are threefold:

*the constitution itself, through **direct participation**, as well as through their elected representatives.*

- Therefore, it is not always true that the exercise of popular sovereignty through only one-form, as we have seen the case of Switzerland.
- It is also quite important to emphasize that democracy is not a precondition for the existence of popular sovereignty, and that was why even the 1987 constitution had declared popular sovereignty as one of its principles which was said to be exercisable through the Workers' Party of Ethiopia.

1.4.3 Separation of powers and the principle of checks and balances

- Now we are moving to the third principle and which is the most important one and this relates with **separation of powers**, a principle that was later modified by **the fathers of the US constitution** by including in it another caveat-checks and balances.
- This is a principle that propounds the division of the legislative, executive and judicial functions of the government **among separate and independent bodies.**
- And at the same time the principle of **checks** and **balances** serves as a means of maintaining the balance while the organs are functioning separately

Separation of Powers:

- **As said above it dictates us that the three major functions of government must operate independently by the three organs and such a separation limits the possibility of arbitrary excesses by government, since the sanction of all three branches is required for the making, executing, and administering of laws.**
- **This way, power is distributed horizontally across each organ with its own distinct type of role.**

Separation of Powers:

- The concept received its first modern formulation in the works of Montesquieu, who declared it as the best way to safeguard liberty; he influenced the framers of the Constitution of the United States, who in turn influenced the writers of the 19th and 20th century constitutions.

Separation of Powers:

- Montesquieu proposed division of political power between an executive, a legislative, and judiciary as a model for the governance of the state, which principle has also been extended to the non-political realms under the term 'separation of duties.'
- Under his model, each branch must be separate in terms of *function*, *person*, and *institution*.
- By *functional* separation he meant that an executive organ's function must be essentially execution of the laws of the legislative branch and so shall be for the other two organs.
- This is not, however, to prohibit the issuance of normative rules by the executive as an incidence to its main function.

Separation of Powers:

- By personal separation he referred to the fact that a person in the executive branch may not be permitted to sit in the legislative branch, as that would tantamount to letting this person to legislate and execute a law which goes in direct contradiction with the principle.
- Institutionally too there need to be separation of these three organs. This way, he says that it is possible to avoid tyranny of rule which would exist if all the three functions were to be performed by one organ.



Separation of Powers:

- Taking this as a standing stone the fathers of the American constitution had developed it further by saying that an absolute separation of the three functions may not be enough to avoid tyranny.
- This is because within its confines of legislative power, if left unchecked, there is no possibility to deter the legislative organ from being tyrannical by issuing such laws.
- The same holds true for the judiciary and the executive organs of government.
- Therefore, it is proposed and widely accepted that there is a need for checks and balances of powers that complements the principle of separation of powers.

Checks and Balances

- In a system of government with competing sovereigns (such as a multi-branch government or a federal system), 'checks' refers to the ability, right, and responsibility of each power to monitor the activities of the other(s); 'balances'
- refers to the ability of each entity to use its authority to limit the powers of the others, whether in general scope or in particular cases.
- As described above, keeping each independent entity within its prescribed powers can be a delicate process.
- Therefore, 'checks and balances' make sure not one branch is too powerful.

Checks and Balances

- Such balance is maintained in various ways and means.
- Basically, each organ will have its own sphere of operation and with that regard no interference is permitted.
- The classical checks and balances exist between the three organs by the three organs themselves while there are also other means of checking those organs.
- Before considering such mechanisms of checks and balances outside the organs themselves, first it is good to see how this system works within the organs themselves.

Checks and Balances

- The best example is to have a look at the American constitution's basic elements of the separation of powers and its corresponding checks and balances exercised by each organ over the other.
- The three branches of government while functioning in their area of specialization will have the opportunity and right to review the other's acts.
- The legislature's law-making power may be checked by the executive's veto power and the judiciary's power as interpreter of the constitution whereby it may nullify a legislation that contradicts the constitution.

Checks and Balances

- While the power of the executive to appoint judges may be checked by the corresponding responsibility of the Congress to approve such appointment the legal protection for secured tenure will have a checking effect as it denies the executive not to interfere into the works of the judiciary.
- On top of budgetary decisions, the legislative organ also has a checking power over the judiciary by its right to impeach and remove judges.
- Many of such intertwined powers and responsibilities show how sophisticated the matter is for design.
- But once done it remains to be a very effective means of closing the door for tyrannical rules.

Checks and Balances

- When we see the FDRE constitution in respect of the above mentioned points, the absence within the prerogatives of the courts the power to interpret the constitution avoids the means for the latter to check the excesses of the legislative organ.
- Moreover, as is true in parliamentary system of government, the executive is 'dependent' or in our case, part of the legislature.
- This is so because in principle the highest government power remains within the House of Peoples' Representatives.
- As indicated in Article 50(3) 'The House of Peoples' Representatives is the highest authority of the Federal Government.

Checks and Balances

- The House is responsible to the People.’ (Here for consistency sake the last word ‘the People’ should have been ‘the Nations, Nationalities, and Peoples of Ethiopia.’)
- The Premier, while appointing his crew cabinet members has the option to look into the two Houses or outside.
- Though that can be considered as the normal way to do it, the absence, in the constitution, of denying a Minister’s seat within the law-making body once appointed as a minister by the Premier creates a situation where a person will make a law that he himself is expected to execute.

Checks and Balances

- The executive, with the approval of the House appoints the chief justice of the Federal Supreme Court thereby controlling the judiciary and being checked by the legislature.
- However, the absence of judicial review and administrative courts in our legal system, the checking that should have been exercised by the judiciary over the executive remains just a wish.
- Budget is to be decided nationally by the House on the basis of the proposal by the executive branch, and to thinly allocate the budget remains to be at each organ's own prerogative.

Checks and Balances

- The House, as the highest government organ in the country, has the right and responsibility to question the executive on its day-to-day running of its affairs. It is provided in Article 55(17) in the following way;
- *'It has the power to call and to question the Prime Minister and other Federal officials and to investigate the Executive's conduct and discharge of its responsibilities.'*
- If, through such process, the executive fails to maintain the support of the majority of the House, it shall lose vote of confidence and the party or coalition of parties that has formed the executive will also lose its political power. The following is provided under Article 60(2) concerning the effect of loss of the majority's support within the House;

Checks and Balances

- *‘The President may invite political parties to form a coalition government within one week, if the Council of Ministers of a previous coalition is dissolved because of the loss of its majority in the House.’*
- This way, it is expected that a strict checking would be exercised over the executive by the legislative organ of the country.
- Accordingly, it is very important to note for the executive it is not a ‘once-in-five-years’ job as far as its responsibility to maintain the vote of confidence within the House of Peoples Representatives is concerned.

Checks and Balances

- The other form of checking that we find in the US constitution is the one that exists within the single organ itself.
- This form of checking exists only with the two organs of government, i.e. the legislature and the judiciary.
- In the former it exists because of the true bicameral parliament while in the latter because of the tiers of courts that function in any judicial system.
- As indicated in the table at point 8 in relation to the Congress and point 7 with regard to the Judiciary, there is intra-organ checking by, for instance, either of the houses by rejecting a bill that has been approved by the other.

Checks and Balances

- Similarly the higher court having the right to reverse the lower courts' decisions will exercise a checking power.
- It is only the latter that works when it comes to the Ethiopian constitution as we do not have a true bicameral parliament because one of the Houses (the Federation Council) is not involved in the legislation process, except its power to propose the enactment, on civil matters, of laws that it 'deems necessary to establish and sustain one economic community.'

Checks and Balances

- **‘Fourth-organ’ checking mechanisms**
- Other than the checks and balances that is exercisable within the three organs themselves there exists checking by the so called ‘fourth-organs’ of the state.
- Within these category are primarily **the peoples themselves** who will have the opportunity at least once in a while to challenge those in power in **an open forum of election** as has happened during the second term election to the incumbent US Republican party that has undergone a landslide defeat in favor of the Democrats after its twelve years of reign in the US politics.

Checks and Balances

- Therefore, what we see here is modern day politics may now be seen as a form of check and balance.
- The leader of the opposition has the ability to scrutinize the work of the government, as has been done by the Democrats, thus ensuring a further safeguard against any abuse of power by the executive.
- As a consequence, a leader may fall from power at the following election.
- Thus, here politics is serving as a fourth-branch of checking and opposition leaders and the public are the primary players which is true in all countries where there are democratic institutions that ensure the active participation of these two agents.

Checks and Balances

- The properly identified fourth branch of government in the modern democracies is the bureaucracy which is governed by the rules of civil service.
- This is a group of professional corps of officials organized in a pyramidal hierarchy and functioning under impersonal, uniform rules and procedures. Recruitment is done on the basis of competence and not on political allegiance.
- The goal of any bureaucracy is to be rational, efficient, and professional. Thus, as the name 'civil' indicates, these occupations are neither political nor judicial.

Checks and Balances

- The members of the civil service are meant to serve as neutral advisors to elected officials and though not charged with their formulation they are charged with the execution of policies.
- This fourth branch of government is supposed to check the excesses of each organ within which they are working in a neutral, friendly and constructive approach.

Checks and Balances

- The third and the most important fourth branch is the press which is entrusted with this task of checking the government's exercise of power through public criticisms.
- For the opposition leaders and the public at large the information source is the press on which the formers have to rely to play their respective roles.
- Traditionally, the press has been the 'voice of the people' keeping government somewhat in check.
- Among the widely known US press success stories the Watergate Scandal could be cited where two Washington Post reporters exposed government corruption and cover up at the highest levels of government.

Checks and Balances

- This exposure caused many individuals to resign, be fired, or prosecuted.
- For the May 2005 elections in Ethiopia, the role that the Ethiopian free press has played is to be remembered for 'eternity', though such vigilance still has its own risk of ending up in jail, if not worse, in countries of 'beginners-to-democracy.'

Checks and Balances

- In the common law traditions, the Juries (groups of randomly selected citizens) also have an important role in the check-and-balance system.
- They have the sole authority to determine the facts in most criminal and civil cases, acting as a powerful buffer against arbitrary enforcement by the executive and judicial branches.
- In many jurisdictions they are also used to determine whether or not a trial is warranted, and in some places Grand Juries have independent investigative powers with regard to government operations. This again is not present in the civil law traditions such as Ethiopia.

Checks and Balances

- Related restraint-of-power concepts are Federalism-also known as vertical separation of powers prevents abuse by dividing governing powers, the separation is usually between municipal, provincial and national governments; rule of law also prevents arbitrary exercise of the executive power, preserves general and minority rights, and promotes stability and predictability; democracy and civil society, attempts to constrain elected branches of government to act in the public interest, not in self-interest; civilian control of the military, helps prevent dictatorship through military rule; an independent central bank-financial institution designed to regulate and control the money supply of a nation, with the goal of fostering economic growth without inflation-may also play a role if it is fairly independent through market analysis and preventing the government from 'bad spending'.

Checks and Balances

- These are some of the checking mechanisms that exist outside the three organs of government and they sometimes are much stronger than the one that exist within the three organs themselves.
- It is also important to note that these are not as such recognized as fourth-branch of government though they are playing their role as one.
- Still important is the fact that the traditional threefold government power division is somehow being modified by such instances as the Gaza Strip which had only executive and legislative branches, reducing the traditional power share into two.
- A different approach is also that of the Republic of China's government which has five branches: the Executive Yuan, Legislative Yuan, Judicial Yuan, Control Yuan, and Examination Yuan (many countries have rough analogues to the Control Yuan in the forms of Ombudsmen, separate from the executive and the legislature.)

1.4.4 Rule of Law

- Inter related with a number of principles
- **Supremacy of the constitution, fundamental rights, judicial independence and separation of powers**
- **Each contributing for its implementation**
- **The rule of law requires the government to exercise its power in accordance with well-established and clearly written rules, regulations, and legal principles.**
- **Rule of law Vs rule of men**

Rule **by** law (west vs d-ing countries) – **abuse/arbitrary power**



Key elements of ROL:

1. Law and order

- minimum** role of the state vs Somalia, Yemen, Libya; violators must face sanction
- Let the law rule –citizen, parties, institutions, rulers – obey the law- does not tell **content** of the law; law could be instrument of power/discrimination (family law 1960)

2. Absence of arbitrary power

- **Check and balance** –where leg. exercises political control over executive,
 - parent law vs regulations,
 - executive do not violate HRs while enforcing laws/policies
- **Strong exe yes, BUT along with strong leg**

3. **Due process** – general, published, stable
- Equality before the law –the ‘noble and the base’
4. **Promote human rights and justice** – rule of law sometimes is ‘thick’ may imply ‘good law’
- Law as reflection of norms/values of the people
 - Else rule of law could be an instrument of power and end as **rule by law**
 - It is not an end, **it is a means to an end**

Rule of Law

- **The United Nations Secretary General, in one of its speeches while addressing the General Assembly had defined rule of law in the following manner;**
- *'a principle of governance in which all persons , institutions, entities, public and private, including the State itself are accountable to laws that are publicly promulgated, equally enforced, and independently adjudicated, laws which are consistent with international human rights norms and standards'*

Rule of Law

- The rule of law is an ambiguous term that can mean different things in different contexts.

In one context the term means rule according to law,

which is to mean that no individual can be instructed by the government to pay civil damages or undergo criminal punishment except in strict accordance with well-established and clearly defined laws and procedures.

- **Secondly, the term may mean rule under the law,**
- which again is to mean that **no branch of government is above the law**, and no public official may act arbitrarily or unilaterally outside the law.

Rule of Law

- In a third and final context the term means **rule according to a higher law,**
- which means no written law may be enforced by the government unless it confirms with certain unwritten, universal principles of **fairness, morality, and justice** which transcend human legal systems.

A. Rule According to Law

- A distinction is sometimes drawn between power, will, and force on the one hand, and law on the other.
- When a government official acts pursuant to an express provision of a written law, he acts within the rule of law.
- However, government official acts by the sheer force of his will and power where there is no law to back up his actions.

A. Rule According to Law

- Under the rule of law, no person may be prosecuted for an act that is not punishable by law.
- When the government seeks to punish someone for an offense that was not deemed criminal at the time it was committed, the rule of law is violated because the government exceeds its legal authority to punish.
- The rule of law requires that government impose liability only insofar as the law will allow.
- Government exceeds its authority when a person is held to answer for an act that was legally permissible at the outset but was retroactively made illegal.
- This principle is reflected by the prohibition against the non-retroactivity of criminal laws under Article 22 of the FDRE constitution.

A. Rule According to Law

- For similar reasons, the rule of law is abridged when the government attempts to punish someone for violating a vague or poorly worded law.
- Ill-defined laws confer too much discretion upon government officials who are charged with the responsibility of prosecuting individuals for criminal wrongdoing.
- The more prosecutorial decisions are based on the personal discretion of a government official, the less they are based on law.
- This is also stipulated in criminal laws by outlawing the creation of crimes using analogy as an interpretative tool. Article 2 of the Criminal Code.

A. Rule According to Law

- Before the government may impose civil or criminal liability, a law must be written with sufficient precision and clarity that a person of ordinary intelligence will know that certain conduct is forbidden.

B. Rule under Law

- The rule of law also requires the government to exercise its authority under the law.
- This requirement is sometimes explained with the phrase "no one is above the law."
- During the seventeenth century, however, the English monarch was vested with absolute sovereignty, including the prerogative to disregard laws passed by the House of Commons and ignore rulings made by the House of Lords.
- In the eighteenth century, absolute sovereignty was transferred from the British monarchy to Parliament.

B. Rule under Law

- Similar situations existed in the monarchical periods of Ethiopia where the king was considered as the fountain of justice and enjoyed impunity for his acts.
- Under a modern Constitutional system, no single branch of government is given unlimited power.
- The authority granted to one branch of government is limited by the authority granted to the coordinate branches and by the human rights and freedoms, federal and state statutory provisions, and customary practice.
- The power of any single branch of government is similarly restrained at the state level.

B. Rule under Law

- Members of the judiciary face a slightly different scenario when it comes to the rule of law.
- Each day judges are asked to interpret and apply legal principles that defy clear exposition.
- Terms like "due process," "reasonable care," and "undue influence" are not self-defining. Nor do judges always agree about how these terms should be defined, interpreted, or applied.
- When judges issue controversial decisions, they are often accused of deciding cases in accordance with their own personal beliefs, be they political, religious, or philosophical, rather than in accordance with the law.

C. Rule According to Higher Law

- A conundrum is presented when the government acts in strict accordance with well-established and clearly defined legal rules and still produces a result that many observers consider unfair or unjust.
- Before the Civil War, for example, African Americans were systematically deprived of their freedom by carefully written codes that prescribed the rules and regulations between master and slave.
- Even though these slave codes were often detailed, unambiguous, and made known to the public, government enforcement of them produced unpleasant results.

C. Rule According to Higher Law

- Do such repugnant laws comport with the rule of law?
- The answer to this question depends on when and where it is asked.
- In some countries the political leaders assert that the rule of law has no substantive content.
- These leaders argue that a government may deprive its citizens of fundamental liberties so long as it does so pursuant to a duly enacted law.
- At the Nuremberg Trials, the political, military, and industrial leaders of Nazi Germany unsuccessfully advanced this argument as a defense to Allied charges that they had committed abominable crimes against European Jews and other minorities during World War II.

C. Rule According to Higher Law

- In other countries the political leaders assert that all written laws must conform to universal principles of morality, fairness, and justice.
- These leaders argue that as a necessary corollary to the axiom that "no one is above the law," the rule of law requires that the government treat all persons equally under the law.
- Yet the right to equal treatment is violated when the government categorically denies a minimal level of respect, dignity, and autonomy to a single class of individuals.
- These unwritten principles of equality, autonomy, dignity, and respect are said to transcend ordinary written laws that are enacted by government.

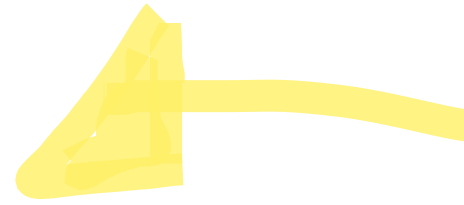
C. Rule According to Higher Law

- Now let us see briefly one of the provisions within the FDRE constitution that addresses rule of law, among others.
- Rule of law is not something to be legislated about; rather it is something to be practiced.
- The greatest that the law may provide with this regard is the consequences for acting out of the terms of the law, which is legally termed as misuse or abuse of power.
- Under Article 12 of the FDRE constitution, there is one provision that lays down one principle with regard to conduct and accountability of public officials;
- and there is Article 22;
- there is Article 2 of the criminal code that prohibits creating an offence by analogy;
- there is Article 37 of the FDRE constitution that talks about access to justice as one of the democratic rights of the Ethiopian people.

C. Rule According to Higher Law

- All these, in conjunction with others, give you a picture of rule of law within the above mentioned guidelines. I have reproduced Article 12 for you here;
- Article 12: Conduct and Accountability of Government
- 1. The conduct of affairs of government shall be transparent.
- 2. Any public official or an elected representative is accountable for any failure in official duties.
- 3. In case of loss of confidence, the people may recall an elected representative. The particulars of recall shall be determined by law.

1.4.5 Independence of the Judiciary



- **Judicial independence** is another principle that we are going to consider briefly.
- This is a doctrine that decisions of the judiciary should be **impartial** and not **subject to influence from the other branches** of government or from private or political interests.
- The very fact that the organs must remain separate makes judicial independence a matter of necessity.
- Moreover, guaranteeing the independence of the judiciary is a basic means of **securing trust of and legitimacy in the public** in what the courts' do as guardians of individual and group rights.
- Basically, judicial independence has two elements; **institutional independence** and **functional independence**.
- **By institutional independence**, we are referring to the fact that the judicial branch must be independent from the executive and legislative branches.

1.4.5 Independence of the Judiciary

- This form of independence has been stated under the FDRE Constitution Article 79(2) in the following way:
- Courts of any level shall be free from any interference of influence of any governmental body, government official or from any other source.
- From this we can understand that **the judiciary, as represented by the courts, has been guaranteed with institutional independence**, at least in terms of normative and constitutional aspirations.
- This is to mean that practically, there may be mechanisms to screw-up this kind of norm and defeat its ultimate purpose.
- The other aspect of judicial independence is functional independence, which is also called decisional independence.
- The functions of the judiciary-as an organ empowered to interpret laws to routinely apply them in particular factual situations-may be influenced by external as well as internal factors.

1.4.5 Independence of the Judiciary

- It is believed that the possibility of guaranteeing the rights of individuals and groups will be less likely to happen where the judicial branch of the government is subordinated to the other branches of government which control the treasury as well as the military.
- The judicial organ, which does have a say neither on the budget nor on the 'weapons' has only the law in its hand which, if left free, may play as a strong a role as the other two.
- At the same time, if subordinated, it has no any might to resist such subordination and that is why the United Nations General Assembly in its Resolutions 40/32 of 29 November 1985 declared that 'the independence of the Judiciary shall be guaranteed by the State and enshrined in the Constitution...It is the duty of all governmental and other institutions to respect and observe the independence of the judiciary.'
- This is one of the principles that this resolution has addressed concerning this particular principle with the objective of providing for member states guidance with this regard.
- Thus, it is to be emphasized that by this resolution states are required to have the principle enshrined in their constitutions and guarantee the judiciary with institutional independence.

Sources of Constitutional Law

- There are different sources for constitutional Law

1. Legislation; Act of the Parliament/Decisions of a constituent Assembly
2. International Law;
 - a/ Customary International Law
 - b/ Treaty
3. The Common Law- judicial decisions/Judicial Precedents
4. Academic Writings/Opinions of political and constitutional writers
5. Constitutions of other countries
6. Previous constitutions
7. Constitutional Conventions- not covered by law